

The ChatGPT Lawyer Explains Himself

In a cringe-inducing court hearing, a lawyer who relied on A.I. to craft a motion full of made-up case law said he “did not comprehend” that the chat bot could lead him astray.



By Benjamin Weiser and Nate Schweber

June 8, 2023

As the court hearing in Manhattan began, the lawyer, Steven A. Schwartz, appeared nervously upbeat, grinning while talking with his legal team. Nearly two hours later, Mr. Schwartz sat slumped, his shoulders drooping and his head rising barely above the back of his chair.

For nearly two hours Thursday, Mr. Schwartz was grilled by a judge in a hearing ordered after the disclosure that the lawyer had created a legal brief for a case in Federal District Court that was filled with fake judicial opinions and legal citations, all generated by ChatGPT. The judge, P. Kevin Castel, said he would now consider whether to impose sanctions on Mr. Schwartz and his partner, Peter LoDuca, whose name was on the brief.

At times during the hearing, Mr. Schwartz squeezed his eyes shut and rubbed his forehead with his left hand. He stammered and his voice dropped. He repeatedly tried to explain why he did not conduct further research into the cases that ChatGPT had provided to him.

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Benjamin Weiser is a reporter covering the Manhattan federal courts. He has long covered criminal justice, both as a beat and investigative reporter. Before joining The Times in 1997, he worked at The Washington Post. [More about Benjamin Weiser](#)

A version of this article appears in print on , Section B, Page 5 of the New York edition with the headline: The Lawyer Who Relied on ChatGPT Explains Himself. It Was Awkward.

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